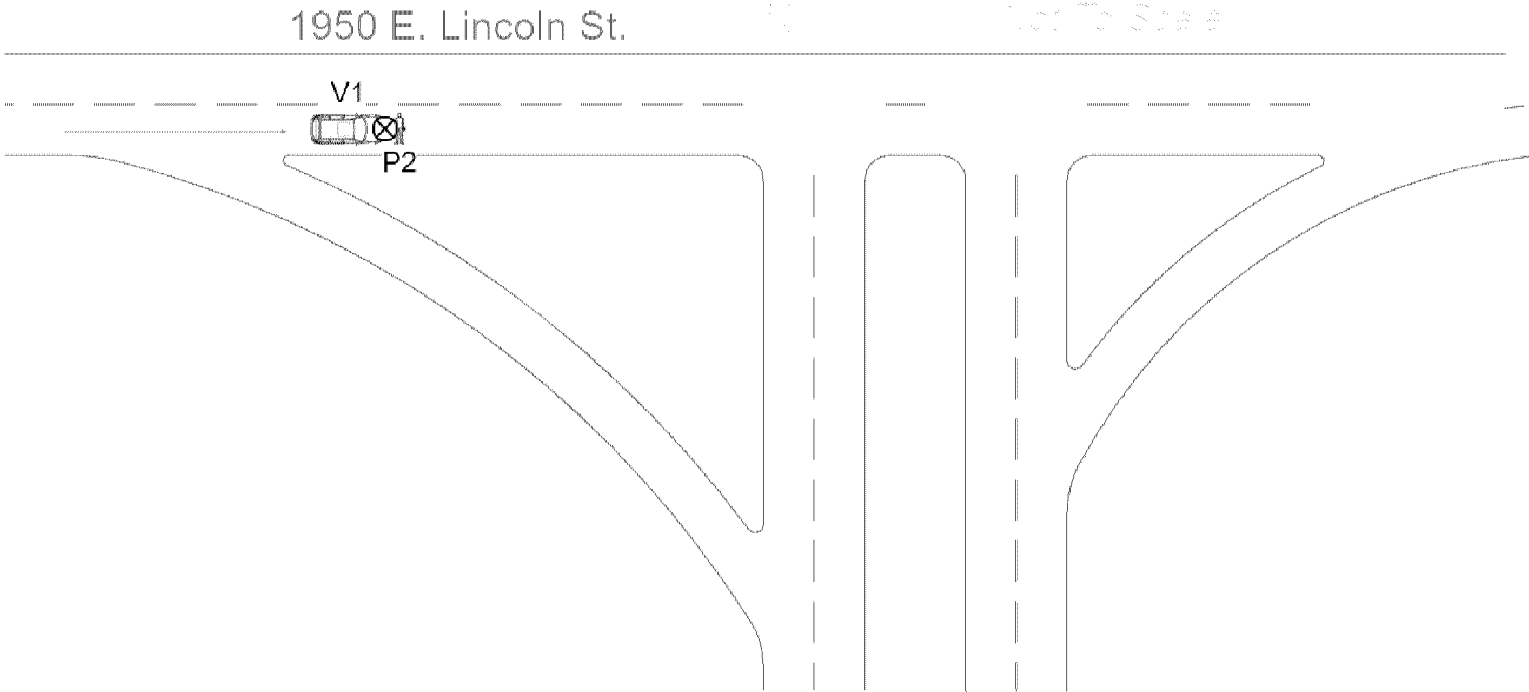


Kansas Motor Vehicle Crash Report KDOT Form 850A page 1 Rev. 2019										Investigating Department		Reviewed by		Local Case No.		Page of		☐ Amended Report ☐ DUI ☒ Hit & Run																			
										WICHITA POLICE DEPT		MORRIS S0276		22C061886		1 / 4																					
Investigating Officer Name										Badge Number		County		City Name		F Crash Severity																					
COLE D COTHAM										C2673		SG		WICHITA																							
Milepost		Block No		Dir Pfx		On Road Name		Road Type		Dir Sfx		SpdLmt		Date of Crash (mm/dd/yyyy)		Time Occur.		Day																			
1950		E		LINCOLN		ST		40		10/02/2022		01:12		SU		Fatal Injury PDO >= \$1,000 PDO < \$1,000																					
From Dist		Ft/Mi		From Dir		☒ FROM ☐ AT		Dir Pfx		Reference or At Road Name		Road Type		Dir Sfx				SpdLmt		Date Notified (mm/dd/yyyy)		Time Notif.		Day													
78		F		W		S		I135		RAMP		40		10/02/2022				01:12		SU																	
Narrative: Describe each traffic unit's pre-crash movement and direction of travel														Date Arrived (mm/dd/yyyy)		Time Arriv.		Day		00 WORK ZONE TYPE ON AT 00 None Apply 01 Construction Zone - 02 Maintenance Zone - 03 Utility Zone - 09 Unknown - LOCATION IN WORK ZONE (AOI) 01 Before first warning sign 02 Advance warning area 03 Transition area 04 Activity area 05 Termination area 99 Unknown																	
D1 TRAVELING EASTBOUND ON E. LINCOLN STREET WHEN THEY COLLIDED WITH P2 WHO WAS WALKING IN THE ROADWAY.														Latitude (AOI)		00																					
														Longitude (AOI)																							
														Photos by																							
KDOT?		Object 1 Damaged & Nature of Damage (show in diagram)										Owner Street Address										Personal Phone															
☐																																					
Owner Last Name		First Name		Middle Name		City		State		Zip		Work Phone																									
KDOT?		Object 2 Damaged & Nature of Damage (show in diagram)										Owner Street Address										Personal Phone															
☐																																					
Owner Last Name		First Name		Middle Name		City		State		Zip		Work Phone																									
ONLY CHOOSE ONE CODE PER CATEGORY UNLESS SPECIFIED OTHERWISE																																					
04		LIGHT CONDITIONS										11		CRASH LOCATION (of 1st Harmful Event)										02		CRASH CLASS (mark 1 box per side)										02	
		01 Daylight 04 Dark: street lights on 02 Dawn 05 Dark: no street lights 03 Dusk 99 Unknown												ON ROADWAY: (within travel lanes) 11 Non-intersection 12 Intersection + 13 Intersection-related + 14 Access to Parking lot/Drvwy 15 Interchange Area + 16 On Crossover 17 Toll Plaza OFF ROADWAY: 20 Shoulder 21 Roadside (not shoulder) 22 Median 23 Rest area 88 Other: 99 Unknown												1st Harmful Event Most Harmful Event 00 Other non-collision 01 Overturned/Rollover COLLISION WITH: 02 Pedestrian 03 Motor vehicle in-transport* 04 Legally Parked Vehicle 05 Railway train 06 Pedal cyclist 07 Animal Type: 08 Fixed object** 09 Other object: 99 Unknown											
00		ADVERSE WEATHER CONDITIONS																																			
		00 No adverse conditions 01 Rain, mist, drizzle 02 Sleet, hail 03 Snow 04 Fog 05 Smoke 06 Strong wind 07 Blowing dust, sand, etc. 08 Freezing rain, mist, drizzle 14 Rain & fog 16 Rain & wind 88 Other: 24 Sleet & fog 36 Snow & wind 99 Unknown																																			
02		ON		SURFACE TYPE										AT						01 Bridge structure 02 Bridge rail 03 Crash cush./Impact attenuator 04 Divider, median barrier 05 Overhead sign support 06 Utility devices: pole, meter, etc 07 Other post or pole 08 Building 09 Guardrail 10 Sign post 11 Culvert 12 Curb 13 Fence/Gate 14 Hydrant 15 Barricade 16 Mailbox 17 Ditch 18 Embankment 19 Wall 20 Tree 21 RRXING fixtures 88 Other: 99 Unknown																	
01		ON		SURFACE CONDITIONS										AT						ROAD SPECIAL FEATURES (up to 3) 00 None 01 Bridge 02 Bridge Overhead 03 Railroad Bridge 04 RRXING 05 Interchange 06 Ramp 99 Unknown																	
		01 Dry 88 Other: 02 Wet 03 Snow 99 Unknown 04 Ice 05 Mud/dirt/sand 06 Debris (oil, etc.) 07 Standing/ moving water 08 Slush																																			
TRAFFIC CONTROLS																																					
(On / At Road) O/A																																					
Type Present OK/NF																																					
00 None																																					
01 Officer, flagger																																					
02 Traffic signal																																					
03 Stop sign																																					
04 Flasher																																					
05 Yield sign																																					
06 RR gates / signal																																					
07 RR crossing signs																																					
08 No passing zone																																					
09 Center/Edge lines																																					
10 Warning signs																																					
11 School zone signs																																					
12 Parking lines																																					
88 Other:																																					
99 Unknown																																					

Crash Diagram 850A page 2		SPECIAL EVENT		SPECIAL DATA		Local Case No. 22C061886	Page of 1 / 4
04 ON	ROADWAY NUMBER OF LANES AT	02 ON	ROAD CHARACTER AT	00	SPECIAL JURISDICTION		
01 One 02 Two 03 Three 04 Four to Six 05 Seven or more 88 Other: _____ 99 Unknown	01 Straight & Level 02 Straight on grade/slope 03 Straight on hillcrest 04 Curved & level 05 Curved on grade/slope 06 Curved on hillcrest 88 Other: _____ 99 Unknown	00 Normal Jurisdiction (Not Special) 01 National Park Service 02 Military 03 Indian Reservation 04 College / University Campus 05 Other Federal property 88 Other: _____ 99 Unknown			A basic diagram is required for all state reportable crashes showing movements, direction, and positions of all traffic units in relationship to the trafficway. Identify (label) the street(s) and traffic unit(s) along with the area of impact (AOI) where possible. Refer to vehicles and pedestrians by unique numbers assigned in this report. <u>Indicate North Direction</u> 		

Draw scene as observed or recreate per statements and evidence available



Occupants & Vehicles KDOT Form 850B page 1 - Rev. 2019				DRIVER & PASSENGER INFORMATION (record pedestrians on supplemental form 854)				Investigating Officer / Badge No. COLE D COTHAM C2673				Local Case No. 22C061886		Page of 2 / 4																	
TU#		VIOLATIONS CHARGED				CITATION#		TU#		VIOLATIONS CHARGED				More violations in narrative ☐		CITATION#															
01		Failure to stop at acc/death				*HFSW*		01		Vehicle liability ins required				*HFSW*																	
01		Veh; Operate veh w/out registr				*HFSW*																									
OFFICER'S OPINION OF APPARENT CONTRIBUTING CIRCUMSTANCES - ENTER AS MANY AS APPLY TO THIS CRASH (FACTOR TYPE, TU#, CC CODE)																															
D01		00		P02		28		P02		31																					
Unit #		DRIVER Last Name		Middle Name		DRIVER ADDRESS (Number, Street, Suffix, etc.)				Personal Phone Number		Gender		SE Used		Inj Severity		Transpt Unit													
Seat Type		DRIVER First Name		Date of Birth		City				Work Phone Number		Age		Eject/Trap		Eject Path		Extrication?													
TU		01		LOCKE JR		MN		2051 S DROLLINGER RD				Personal		M		U		N													
ST		01		KENNETH		DOB		WICHITA				Work		58		N															
TU				MN						Personal																					
ST				DOB						Work																					
TRAFFIC UNIT# 01 (01, 03, N3, X3, etc)																TRAFFIC UNIT# (02, 04, N2, X4, etc)															
DL State		Driver's License Number				DL Class		Driving for Employer?		CDL?		DL State		Driver's License Number				DL Class		Driving for Employer?		CDL?									
KS		K00098442				CM																									
01		DR LICENSE COMPLY		RESTRICT COMPLY		COMMERCIAL ENDORSEMENTS										01		DR LICENSE COMPLY		RESTRICT COMPLY		COMMERCIAL ENDORSEMENTS									
00 Not licensed				Restrictions? N		1		2		3		4		00 Not licensed				Restrictions?		1		2		3		4					
01 Valid License				Driver's Lic Restrictions		Complied? Y N		Z - None		T - Double/Triple Trailer		P - Passenger Vehicle		01 Valid License				Driver's Lic Restrictions		Complied? Y N		Z - None		T - Double/Triple Trailer		P - Passenger Vehicle					
02 Suspended				1				N - Tank Vehicle		H - Placarded Haz. Material		X - Combination Tank/HazMat		02 Suspended				1				N - Tank Vehicle		H - Placarded Haz. Material		X - Combination Tank/HazMat					
03 Revoked				2				S - School Bus		U - Unknown				03 Revoked				2				S - School Bus		U - Unknown							
04 Expired				3										04 Expired				3													
05 Cancl'd or Denied				4										05 Cancl'd or Denied				4													
06 Disqualified														06 Disqualified																	
07 Restricted														07 Restricted																	
99 Unknown														99 Unknown																	
SUBSTANCE USE (mark all that apply)																SUBSTANCE USE (mark all that apply)															
AP - Alcohol ingested				DC - Illegal drugs contributed				AP - Alcohol ingested				DC - Illegal drugs contributed				AC - Alcohol contributed				MP - Medication ingested				MC - Medication contributed							
AC - Alcohol contributed				MP - Medication ingested				DP - Illegal drugs ingested				MC - Medication contributed				DP - Illegal drugs ingested				MC - Medication contributed											
METHOD OF DETERMINATION (mark all that apply)																METHOD OF DETERMINATION (mark all that apply)															
ALCOHOL		DRUGS		NG - No Test given		TR - Test Refused (Alcohol/Drug)		PT - Prelim Positive Test (PBT)		TG - Evidentiary Test given		RP - Results pending		ALCOHOL		DRUGS		NG - No Test given		TR - Test Refused (Alcohol/Drug)		PT - Prelim Positive Test (PBT)		TG - Evidentiary Test given		RP - Results pending					
00 No evidence of impairment		00		01 Evidential Test (Breath,Blood,etc)		01		02 Preliminary Breath Test PBT		02		03 Behavioral		03		04 Passive Alcohol Sensor		04		05 Observed		05		06 Other (e.g. saliva test)		06					
Tests: HGN, walk-and-turn, one leg stand, etc.				Tests: HGN, walk-and-turn, one leg stand, etc.				Evidentiary Breath		Eye Fluid		Blood (BAC)		Other		Evidentiary Breath		Eye Fluid		Blood (BAC)		Other		Drug screen result		Drug screen result					
04 Passive Alcohol Sensor				05 Observed				0.0		0.0		0.0		0.0		04 Passive Alcohol Sensor				05 Observed				0.0		0.0					
(detects alcohol from driver's mouth)				(Odor, staggering, slurred speech, etc)				0.0		0.0		0.0		0.0		(detects alcohol from driver's mouth)				(Odor, staggering, slurred speech, etc)				0.0		0.0					
06 Other (e.g. saliva test)				Drug screen result				Drug screen result								06 Other (e.g. saliva test)				Drug screen result											
Unit #		PASSENGER Last Name		Middle Name		PASSENGER ADDRESS (Number, Street, Sfx, etc.)				Personal Phone Number		Gender		SE Used		Inj Severity		Transpt Unit													
Seat Type		PASSENGER First Name		Date of Birth		City				Work Phone Number		Age		Eject/Trap		Eject Path		Extrication?													
TU		01		SHERER		MN		711 S MAIN ST APT 524				Personal		F		U		N													
ST		03		JERRICA		DOB		WICHITA				Work		30		N															
TU				MN						Personal																					
ST				DOB						Work																					
TU				MN						Personal																					
ST				DOB						Work																					
TU				MN						Personal																					
ST				DOB						Work																					
Transport Unit A		EMS Time Notified		Injured taken by:		MEDIC 21		Transport Unit		EMS Time Notified		Injured taken by:																			
01:18		01:38		Injured taken to:		ST. FRANCIS		EMS Arrived		EMS Time@Hosp		Injured taken to:																			

Occupants and Vehicles 850B page 2										VEHICLE# 01 (01, 03, N3, X3, etc)		SPECIAL DATA					
OWNER Last Name ("Same" if Driver) LOCKE JR				OWNER First Name KENNETH				Middle Name ALFRED									
OWNER ADDRESS (Number, Street) 2051 S DROLLINGER RD										New address? ☒		Personal Phone (316) 609-9309					
CITY WICHITA				ST KS		ZIP 67218		Work Phone (316) 267-8834									
COLOR BLK		YEAR 2014		MAKE DODG		MODEL R15		BODY STYLE PK		ST KS							
LICENSE PLATE # 061CTV		County SG		Exp YR 2021		Removed by:				MC CCs							
VEHICLE IDENTIFICATION NUMBER 1C6RR7HT6ES376242								Dir of Travel E		# Occupants 2							
Insurance Company NONE				Policy Number													
SPECIAL CONDITIONS FOR TRAFFIC UNITS 1 1 2 3 4 5										Odometer		Fire? ☐					
1 Hit & Run 2 Non-Contact 3 Stolen 7 Towed away due to damage 4 Legally Parked 5 Pursued by LE 6 Driverless																	
05 VEHICLE BODY TYPE LARGE / HEAVY VEHICLE (GCVWR over 10,000lbs) 01 Automobile 10 Single heavy truck >10,000 lbs 02 Motorcycle 11 Truck & trailer(s) 03 Motor scooter or Moped 12 Tractor-trailer(s) 04 Van 13 Cross country bus 05 Pickup truck <10,001 lbs 14 School bus 06 Sport utility veh - SUV 15 Transit (city) bus 07 Camper or RV 16 Other bus 08 Farm machinery 25 Train 09 All-terrain vehicle - ATV 88 Other: 99 Unknown																	
01 VEHICLE USE 01 No special use 06 Police 02 Taxi / Limo 07 Ambulance 03 School bus 08 Fire 04 Other bus 09 Mail/Parcel 05 Military 99 Unknown																	
02 VEHICLE DAMAGE 00 None 04 Destroyed 01 Damage (minor) 88 Other: 02 Functional 03 Disabling 99 Unknown																	
DAMAGE LOCATION AREA First Impact 12 Major Impact 12 12C 13 6C 14 Undercarriage 15 Windshield 16 Other windows 99 Unknown 17 Entire vehicle damaged 88 Other: Trailer: Present / Damaged																	
VEH. MANU. BEFORE UNSTAB. SIT. 01 Straight/ following road 11 Stopped awaiting turn 02 Left Turn 12 Stopped in traf 03 Right Turn 13 Illegally parked 04 U Turn 14 Disabled in roadway 05 Passing 15 Slowing or stopping 06 Changing lanes 16 Negotiating a curve 07 Avoidance man. 88 Other: 08 Merging 99 Unknown 09 Parking 10 Backing																	
VEHICLE SEQUENCE OF EVENTS (List up to 4 per unit in the order of occurrence) 1 21 2 3 4 The exact sequence is unknown NON-COLLISION COLLISION WITH 01 Ran off road right 10 Downhill runaway 21 Pedestrian 02 Ran off road left 11 Trailer swing 22 Motor veh in-transport 03 Crossed centerline 12 Separation of units 23 Legally Parked Vehicle 04 Overturn/Rollover 13 Jackknife 24 Train 05 Crossed median 14 Fire 25 Pedal cycle (bike, etc) 06 Fell/Jumped from veh 15 Explosion 26 Animal 07 Thrown or falling object 16 Immersion in water 27 Fixed Object 08 Cargo loss or shift 88 Other event: 28 Other moveable object 09 Equipment failure (tire, brakes, etc.) 98 Unknown non-coll. 99 Unknown object																	
02, 04, N2, X4, etc)												SPECIAL DATA		Local Case No. 22C061886		Page of 2 / 4	
OWNER Last Name ("Same" if Driver)				OWNER First Name				Middle Name									
OWNER ADDRESS (Number, Street)										New address? ☐		Personal Phone					
CITY				ST		ZIP		Work Phone									
COLOR		YEAR		MAKE		MODEL		BODY STYLE		ST							
LICENSE PLATE #		County		Exp YR		Removed by:				MC CCs							
VEHICLE IDENTIFICATION NUMBER								Dir of Travel		# Occupants							
Insurance Company				Policy Number													
SPECIAL CONDITIONS FOR TRAFFIC UNITS 1 2 3 4 5										Odometer		Fire? ☐					
1 Hit & Run 2 Non-Contact 3 Stolen 7 Towed away due to damage 4 Legally Parked 5 Pursued by LE 6 Driverless																	
VEHICLE BODY TYPE LARGE / HEAVY VEHICLE (GCVWR over 10,000lbs) 01 Automobile 10 Single heavy truck >10,000 lbs 02 Motorcycle 11 Truck & trailer(s) 03 Motor scooter or Moped 12 Tractor-trailer(s) 04 Van 13 Cross country bus 05 Pickup truck <10,001 lbs 14 School bus 06 Sport utility veh - SUV 15 Transit (city) bus 07 Camper or RV 16 Other bus 08 Farm machinery 25 Train 09 All-terrain vehicle - ATV 88 Other: 99 Unknown																	
VEHICLE USE 01 No special use 06 Police 02 Taxi / Limo 07 Ambulance 03 School bus 08 Fire 04 Other bus 09 Mail/Parcel 05 Military 99 Unknown																	
VEHICLE DAMAGE 00 None 04 Destroyed 01 Damage (minor) 88 Other: 02 Functional 03 Disabling 99 Unknown																	
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VEHICLE SEQUENCE OF EVENTS (List up to 4 per unit in the order of occurrence) 1 2 3 4 The exact sequence is unknown NON-COLLISION COLLISION WITH 01 Ran off road right 10 Downhill runaway 21 Pedestrian 02 Ran off road left 11 Trailer swing 22 Motor veh in-transport 03 Crossed centerline 12 Separation of units 23 Legally Parked Vehicle 04 Overturn/Rollover 13 Jackknife 24 Train 05 Crossed median 14 Fire 25 Pedal cycle (bike, etc) 06 Fell/Jumped from veh 15 Explosion 26 Animal 07 Thrown or falling object 16 Immersion in water 27 Fixed Object 08 Cargo loss or shift 88 Other event: 28 Other moveable object 09 Equipment failure (tire, brakes, etc.) 98 Unknown non-coll. 99 Unknown object																	

Passengers & Pedestrians			LIST ADDITIONAL PASSENGERS BY TRAFFIC UNIT			Investigating Officer / Badge No.		Local Case No.		Page of
KDOT Form 854 page 1 - Rev. 2019						COLE D COTHAM C2673		22C061886		3 / 4
Unit #	PASSENGER Last Name	Middle Name	PASSENGER ADDRESS (Number, Street, Sfx, etc.)			Personal Phone Number	Gender	SE Used	Inj Severity	Transpt Unit
Seat Type	PASSENGER First Name	Date of Birth	City	State	Zip	Work Phone Number	Age	Eject/Trap	Eject Path	Extrication?
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
TU		MN	New address? ☐			Personal				
ST		DOB				Work				☐
Transport Unit	EMS Time Notified	Injured taken by:				Transport Unit	EMS Time Notified	Injured taken by:		
EMS Arrived	EMS Time@Hosp	Injured taken to:				EMS Arrived	EMS Time@Hosp	Injured taken to:		
Transport Unit	EMS Time Notified	Injured taken by:				Transport Unit	EMS Time Notified	Injured taken by:		
EMS Arrived	EMS Time@Hosp	Injured taken to:				EMS Arrived	EMS Time@Hosp	Injured taken to:		

Passengers & Pedestrians 854 page 2				PEDESTRIAN INFORMATION				Investigating Officer / Badge No. COLE D COTHAM C2673		Local Case No. 22C061886		Page of 3 / 4	
Unit # Ped Type	PEDESTRIAN Last Name PEDESTRIAN First Name		Middle Name Date of Birth	PEDESTRIAN ADDRESS (Number, Street, Sfx, etc.) City State Zip			Personal Phone Number Work Phone Number	Gender Age	SE Used Eject/Trap	Inj Severity Eject Path	Transpt Unit Extrication?		
TU 02	BERTIN		MN BYAMUNGU	2736 S SENECA ST New address? ☐			Personal (316) 413-9842	M	N	F	A		
PT 21	KAROTI		DOB 05/02/1987	WICHITA KS 67217			Work	35			☐		
TU			MN	New address? ☐			Personal						
PT			DOB				Work				☐		
Transport Unit	EMS Time Notified			Injured taken by:			Transport Unit	EMS Time Notified			Injured taken by:		
EMS Arrived	EMS Time@Hosp			Injured taken to:			EMS Arrived	EMS Time@Hosp			Injured taken to:		
TU#	DirTrvl	DL State	Driver's License Number		Special Data								
02	E	KS	K03743267										
13	PEDESTRIAN ROADWAY LOCATION BEFORE IMPACT												
00 NOT in roadway (driving lanes)													
IN or AT INTERSECTION NOT IN or AT INTERSECTION													
01 In crosswalk or bikeway 11 In crosswalk or bikeway													
02 NOT in crosswalk or bikeway 12 NOT in crosswalk or bikeway													
03 In intersection without a crosswalk or bikeway 13 In area without a crosswalk or bikeway													
88 Other: 99 Unknown													
OTHER PEDESTRIAN LOCATION (Not in Driving Lanes)													
01 Within a work zone 08 Driveway access crosswalk													
02 In median (not shoulder) 09 Dedicated bike lane													
03 On Island 10 Shared-use path or trails													
04 Road shoulder (not ditch or median) 11 Inside building													
05 Roadside (not on shoulder) 12 In legally parked vehicle													
06 Sidewalk 88 Other:													
07 Outside trafficway 99 Unknown													
07	PEDESTRIAN ACTION BEFORE CRASH												
01 Walking / cycling to or from school 07 Standing, sitting, or lying													
02 Approaching or leaving bus 08 Playing, running, walking													
03 Approaching or leaving vehicle 09 Cycling													
04 Working (not on vehicle) 10 Entering or crossing													
05 Working on vehicle 88 Other:													
06 Pushing motor vehicle 99 Unknown													
04	PEDESTRIAN OBEDIENCE TO TRAFFIC SIGNAL												
00 No pedestrian signal 03 Ped signal malfunction													
01 Obeyed pedestrian signal 04 Not applicable													
02 Disobeyed pedestrian signal 99 Unknown													
SUBSTANCE USE (mark all that apply)													
☐ AP - Alcohol ingested ☐ DC - Illegal drugs contributed													
☐ AC - Alcohol contributed ☐ MP - Medication ingested													
☐ DP - Illegal drugs ingested ☐ MC - Medication contributed													
METHOD OF DETERMINATION (mark all that apply)						IMPAIRMENT TEST (mark all that apply)							
ALCOHOL DRUGS						ALCOHOL DRUGS							
☒ 00 No evidence of impairment ☒						☐ NG - No Test given ☐							
☐ 01 Evidential Test (Breath,Blood,etc) ☐						☐ TR - Test Refused (Alcohol/Drug) ☐							
☐ 02 Preliminary Breath Test PBT ☐						☐ PT - Prelim Positive Test (PBT) ☐							
☐ 03 Behavioral Tests: HGN, walk-and-turn, one leg stand, etc. ☐						☐ TG - Evidentiary Test given ☐							
☐ 04 Passive Alcohol Sensor (detects alcohol from driver's mouth) ☐						☐ RP - Results pending ☐							
☐ 05 Observed (Odor, staggering, slurred speech, etc) ☐						☐ Evidentiary Breath ☐ Eye Fluid							
☐ 06 Other (e.g. saliva test) ☐						☐ Blood (BAC) ☐ Other							
						☐ Drug screen result ☐							

AREA OF IMPACT (AOI):

AOI WAS DETERMINED TO BE AT 1950 E. LINCOLN ST. AOI WAS ALSO DETERMINED TO BE APPROXIMATELY 58 FEET TO THE EAST OF S. MINNEAPOLIS AVE. THIS WAS BASED ON VEHICLE DEBRIS, BLOOD POOL, AND WHERE THE BODY CAME TO REST.

DRIVERS STATEMENTS:

D1-KENNETH LOCKE: STATED THAT HE WAS DRIVING EASTBOUND ON LINCOLN WHEN HE CAME UPON THE PEDESTRIAN STANDING IN THE MIDDLE OF THE ROADWAY FACING THE OPPOSITE DIRECTION. HE STATED THAT THE PEDESTRIAN WAS NOT WEARING A SHIRT AND WAS DIFFICULT TO SEE AND HE WAS UNABLE TO STOP. AFTER THE COLLISION HE STOPPED AND THEY CHECKED ON THE PEDESTRIAN AND THAT OTHERS WERE SAYING HE WAS OK. HE GOT SCARED AND THEN LEFT.

PEDESTRIAN STATEMENTS:

P2-BERTIN, K: NO STATEMENTS WERE GIVEN. MR. BERTIN WAS TRANSPORTED TO ST. FRANCIS HOSPITAL BY MEDIC 21, CODE RED, GCS 3. HE WAS PRONOUNCED DECEASED AT 0418 HOURS BY DR. HALL.

WITNESS STATEMENTS:

W1: JERRICA SHERER: MS. SHERER STATED THAT SHE WAS THE FRONT PASSENGER IN MR. LOCKE'S VEHICLE AND THAT THEY WERE DRIVING TO LOCKE'S RESIDENCE WHEN THEY CAME UPON AN UNKNOWN PERSON STANDING IN THE MIDDLE OF THE ROADWAY THEY DIDN'T SEE. AFTER THE COLLISION THEY STOPPED AND CHECKED ON MR. BERTIN AND SHE CALLED 911. SHE STATED THAT LOCKE WAS "FREAKING OUT" AND THAT HE THEN DROVE AWAY.

INJURIES:

D1-LOCKE WAS UNINJURED.

W1: SHERER: WAS UNINJURED.

P2-BERTIN, K: SUSTAINED A HEAD INJURY AND HAD A LOT OF FLUID IN HIS CHEST CAVITY.

DAMAGE:

V1-THE 2014 RAM 1500 SUSTAINED FRONT END DAMAGE PRIMARILY ON THE FRONT PASSENGER SIDE WITH DAMAGE TO THE GRILL AND HOOD OF THE VEHICLE.

ROAD CONDITIONS:

E. LINCOLN STREET IS A PAVED ROAD MADE OF ASPHALT IN GOOD WORKING CONDITION. THE ROAD HAS TWO LANES FOR BOTH EAST AND WESTBOUND TRAFFIC. THE CENTER AND EDGE LINES WERE PAINTED AND CONTRASTED WELL WITH THE ROADWAY. THE ROADS WERE DRY WITH NO ADVERSE WEATHER CONDITIONS. IT WAS DARK OUTSIDE, BUT THE STREET LIGHTS WERE ON AND WORKING PROPERLY.

THERE ARE NO PEDESTRIAN SIDEWALKS ALONG THE EASTBOUND LANES OF TRAFFIC. THERE ARE ALSO NO PEDESTRIAN CROSSING OR SIGNALS IN THE IMMEDIATE AREA OF THE COLLISION.

OPINION:

THE CRASH INVESTIGATION SHOWS THAT THE COLLISION WAS THE RESULT OF MR. BERTIN WALKING IN THE ROADWAY IN AN AREA NOT DESIGNATED FOR PEDESTRIAN TRAFFIC. LOCKE FAILED TO REMAIN ON SCENE AND MEET THE POST COLLISION REQUIREMENTS UNDER KSA 8-1602 AND 8-1604.

REPORTED AMENDED ON 10/3/2022 BY DET. R. KEMPF #2061

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